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AT LONG LAST
BJP supporters at a Mahila Morcha Sammelan

Some fear that the bill might encourage women dynasts to contest and rotation may reduce incentive for male legislators. Instead, parties could have reserved tickets for women

panchayat members said they found it difficult to get acceptance in panchayat meetings and to raise issues freely. "Reservations alone cannot bring empowerment," says Prof. Tiwary. "The main challenge of mainstreaming gender is to address the continuing patriarchal resistance in various forums. It is important to strengthen the decision-making power of women for holistic development. Reservation is the first step in that direction."

In the various local bodies that have reservation for women, it was frequently observed that male kin, particularly husbands, wielded influence over the elected women sarpanches. Using designations such as 'Sarpanch Pati' or 'Parshad Pati', they were acting as proxies for their elected wives. That "proxy representation", says Rawat, has largely declined in recent times. "Other socio-economic factors such as literacy, social norms, culture will certainly play a role," says JNU's Prof. Kumar who has studied rural governance in Haryana, Uttar Pradesh, Madhya Pradesh and Himachal Pradesh. "For instance, in Himachal, where female literacy is higher, women members in local bodies are more assertive. The same may not be true in other northern states."

Some observers fear that political parties may disproportionately allot reserved seats to women from established political families, dominant castes and financially affluent groups. In the 2019 Lok Sabha polls, 41 per cent of the women candidates came from political families.

AVOIDING THE PITFALLS

Rotation of reserved constituencies in every election may also be a disincentive for a male legislator to work for his constituency as he may not be eligible to seek re-election from it. "Legislatively mandated geographical reservation is not the smartest way to enhance women's representation," says Yadav. "If seats are not rotated, it prevents deserving men from contesting. If they are, sitting MPs in two-thirds constituencies won't have the incentive to do good work. One-third male MPs will know they'll lose their constituencies the next time and one-third women MPs, too, will feel they will not enjoy the benefit of reservation next time. The smarter measure would have been to force political parties to have quota for women candidates." Reservation of seats in legislative bodies also restricts voter choice to women candidates, denying deserving male candidates opportunity.

In 2000, the then CEC M.S. Gill had proposed to make it mandatory for political parties to put up a minimum agreed percentage of women candidates in assembly and parliamentary polls. The standing committee on law and justice examining the 2008 iteration also recommended that every party distribute 20 per cent tickets to women. That recommendation, however, has not been heeded.

Political parties in several European countries have adopted this practice, though it's largely voluntary. In South Africa, a voluntary quota by parties saw the share of women legislators rise from 2 per cent in 1990 to 46.1 per cent in 2021. In India, political parties have traditionally ignored giving representation to women candidates. In 2019, women made up just 12 per cent of the candidates in the Congress and the BJP.

While the women's reservation bill is being hailed as a historic step towards their empowerment, there is still a long way to go. The political class has accepted it in principle, but the devil lies in the detail. There is still no clarity on how seats will be allocated, or rotated, and what happens in states that have less than three Lok Sabha seats. For it to be a truly historic legislation, it is imperative these creases are ironed out first. ■

–with Anilesh S. Mahajan